



SUMMARY REPORT

Agenda Date: 5/14/2019

To: Sonoma County Board of Supervisors
Department or Agency Name(s): Sonoma County Regional Parks
Staff Name and Phone Number: Mark Cleveland (707) 565-3349
Vote Requirement: 4/5th
Supervisory District(s): 5th

Title:

Mason's Marina Fuel Facilities Remediation

Recommended Actions:

- A) Approve the plans and specifications for the remediation of the Mason's Marina Fuel Facility.
 - B) Award the bid for remediation of the Mason's Marina Fuel Facility to ACTenviro in the amount of \$392,560 and authorize the Chair of the Board to execute the contract.
- (Fifth District)(4/5th Vote Required)

Executive Summary:

Mason's Marina located in Bodega Bay has been in operation since the 1960's providing berthing and retail services to recreational and commercial boaters and fisherman. The previous Marina Lessees, Leon O. and Olivia Mason, installed a retail fuel facility on-site and sold gasoline and diesel fuel to the general public. In 2016 Regional Parks as then-operators of the facility opted to discontinue retail fuel sales and remove the fuel tanks and equipment. Regional Parks hired an outside engineering firm to test soil in the area of the fueling facility and found fuel related contaminants along the fuel lines and around the fuel dispensers. Regional Parks developed plans and specifications to remediate the contaminated soil and solicited bids to perform the work. County Risk Management determined that the County's insurance provider Philadelphia-Tokio Marine America would fund the remediation work. Regional Parks recommends awarding the bid for the Mason's Marina Fuel Remediation project to ActEnviro in the amount of \$392,560 to remove contaminated soil from the Mason's Marina fuel facility. Funding of up to \$356,560 is proposed to come from Tokio Marine America and a \$75,000 deductible is proposed to come from Mason's Marina fund balance. Total project budget is \$431,560 and includes a 10% contingency.

Discussion:

The County is the owner of real property known as Mason's Marina, located at 1820 Westshore Road, Bodega Bay, CA. The Regional Parks Department has been managing the Marina since April 2012, after the expiration of a lease with Leon O. Mason and Olivia Mason. Over a period of more than forty years the Masons operated a store and constructed leasehold improvements on site, including the addition of a vehicle fueling facility with three dispensers and five above ground fuel storage tanks. The tanks were installed in a concrete containment building located on the west side of the property with both above ground and below ground

pipng to the dispensing island approximately 120 feet away. When Regional Parks assumed management of Mason's Marina, the facility and infrastructure needed a significant amount of repair. The fuel station was problematic to operate and it was frequently non-operational either due to moisture in the system or from dispensing errors discovered by County Weights and Measures. Due to the age of the system, replacement parts were difficult to find. In addition Mason's Marina was the only source of vehicle diesel fuel in the Bodega Bay area, the next closest source was in Sebastopol, and the fishing community asked the County to continue providing that service. The permit to sell fuel at Mason's was due to expire on March 28, 2016 and Regional Parks was not able to renew without significant system upgrades. Regional Parks opted to terminate retail sales of gasoline and diesel fuel in February 2016.

In 2016 Regional Parks contracted with EBA Engineering to investigate the site, characterize subsurface conditions, assess risk, and determine the necessary steps to formally close the fueling facility pursuant to applicable regulatory requirements. EBA performed 23 soil borings in the immediate area of the fuel system in order to collect soil and groundwater samples for analysis. The test results indicated that there were detectable concentrations of hydrocarbons in the soil at depths to approximately four to five feet below ground surface in the area of the above ground fuel lines, consisting of gasoline and diesel in low concentrations. However, soil samples obtained in the fuel dispensing area and underground portion of the fuel lines indicated that there were significant concentrations of hydrocarbons in both the soil and the groundwater. EBA Engineering also found the fuel oxygenate methyl tert-butyl ether (MtBE) at a site between the fuel tank building and Bodega Bay. MtBE is typically associated with gasoline and is highly soluble and mobile in groundwater. EBA Engineering did not find gasoline or other fuel related contaminants at this site. EBA Engineering obtained the necessary permits for the remediation work and prepared a scope of work for the project.

Regional Parks worked with Risk Management on an insurance claim to cover remediation costs and the County's insurance provider Tokio Marine America approved the claim.

On March 1, 2019, the Notice Inviting Bids for the Mason's Marina Fuel Facilities Remediation Project was sent out for public bidding and the plans and specifications were made available to prospective bidders. The project was advertised in the Press Democrat on March 3, 2019, and the North Coast Builders Exchange on March 7, 2019. On Tuesday, March 19, 2019 a pre-bid conference was held at the project site. Ten contractors attended the pre-bid meeting. Bids were opened by the Purchasing Division on April 3, 2019. The engineer's estimate for the project was \$400,000 to \$500,000.

Seven bids were received with a range of \$392,560 to \$534,691(see attached Bid Tabulation). The bid of ACT Enviro was determined to be the low responsive bid.

Pending board approval, the contractor will begin construction in May 2019 and will have 35 days to complete the work.

Prior Board Actions:

None

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses	75,000		
Additional Appropriation Requested	356,560		
Total Expenditures	431,560		
Funding Sources			
General Fund/WA GF			
State/Federal			
Fees/Other	356,560		
Use of Fund Balance	75,000		
Contingencies			
Total Sources	431,560		

Narrative Explanation of Fiscal Impacts:

Total cost of the remediation contract is \$431,560, including 10% or \$39,000 for contingencies. The County deductible is \$75,000, so the insurance company could pay up to \$356,560 for the remediation work. Budget appropriation adjustments will be included in the 3rd Quarter Consolidated Budget Adjustments.

Staffing Impacts:			
Position Title (Payroll)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

No staffing impacts.

Attachments:

Bid Tabulation

Related Items "On File" with the Clerk of the Board:

Draft contract, Improvement Plans and Project Manual